

Purbanchal University Act, 1994

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 11

Purvanchal University Act, 2050

Royal Seal and Publication Date

2050.09.19

Certification and Publication Date

2063.06.28

2064.05.09

2066.10.07

2072.11.13

2077.03.11

2082.04.14

Amending Acts

1. Some Nepal Laws Amendment Act, 2063

2. Some Nepal Acts Amendment Act, 2064

3. This Act came into effect from Jestha 15, 2065. Republic Strengthening and Some Nepal Laws Amendment Act, 2066

4. Some Nepal Acts Amendment Act, 2072

5. Act Made to Amend Some Nepal Acts Relating to Education, 2077

6. Some Nepal Acts Amendment Act, 2082

Act No. 32 of 2050

An Act Made to Make Provision Relating to Purvanchal University

Preamble: Whereas, it is desirable to establish Purvanchal University mainly from the public level to operate higher-level teaching institutions for the study, teaching and research of arts, science, law, management, education, technology and other subjects in order to enhance the quality of education on a competitive basis and to develop a healthy educational structure,

This Act is made by Parliament in the twenty-second year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. 1. Short Title and Commencement: (1) This Act may be called the "Purvanchal University Act, 2050".

(2) This Act shall commence from the date specified by the Government of Nepal by notification published in the Nepal Gazette. This Act is specified to commence from the date of 2051.4.1. (Ne.Ra.Pa. 2051.3.28). 2.

Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "University" means Purvanchal University established pursuant to Section 3.

(b) "Assembly" means the University Assembly pursuant to Section 7.

- (c) "Academic Council" means the Academic Council pursuant to Section 10.
 - (d) "Executive Council" means the Executive Council pursuant to Section 12.
 - (e) "Resource Council" means the Resource Council pursuant to Section 14.
 - (f) "Dean" means the head of various faculties established under the University.
 - (g) "Campus" means a constituent campus of the University and that word shall also denote a campus affiliated by the University.
 - (h) "Teacher" means a professor, associate professor, reader, and assistant professor who provides education or conducts/arranges research at the University, and that word shall also denote instructors of various levels at the University and a person designated as a teacher in the rules made under this Act.
 - (i) "Service Commission" means the Service Commission pursuant to Section 19.
 - (j) "Faculty Board" means the Faculty Board pursuant to Section 29.
 - (k) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.
3. Establishment of the University: (1) Purvanchal University is established for the operation of higher level teaching institutions for arts, science, law, management, education, technical and other prescribed subjects.

(2) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077.

The central office of the University shall be located in Gothgaun, Sundar Haraicha Municipality, Morang District.

4. University to be an Autonomous Corporate Body: (1) The University shall be an autonomous and corporate body with perpetual succession. (2) The University shall have its own seal for all its acts and business. (3) The University may acquire, hold, sell, or otherwise dispose of movable and immovable property like an individual. (4) The University may sue and be sued in the same name.

5. Organization of the University: The organization of the University shall be as follows, and their collective form shall constitute the University:- (a) Assembly, (b) Academic Council, (c) Executive Council, (d) Resource Council, (e) Campuses, (f) Faculties, (g) Service Commission, (h) Other bodies as prescribed.

6. Officers of the University: The University shall have the following officers:- (a) Chancellor, (b) Pro-Chancellor, (c) Vice-Chancellor, (d) Registrar, (e) Deans, (f) Chairperson of the Service Commission, (g) Prescribed or other officers.

7. Formation of the Assembly: (1) The University shall have an Assembly as the supreme body. (2) The Assembly shall be formed as follows:- (a) Chancellor - Chairperson (b) Pro-Chancellor - Vice-Chairperson (c) Vice-Chancellor - Member (d) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. Members of the House of Representatives and Provincial Assembly elected under the first-past-the-post electoral system from the constituency where the central office of the University is located - Members (e) Vice-Chancellors of other universities - Member (f) Member of the National Planning Commission (looking after education) - Member (g) Secretary, Ministry of Education, Science and Technology - Member (h) Secretary, Ministry of Finance - Member (i) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. Five persons including at least two women on an inclusive basis from amongst distinguished scholars - Members (j) Deans - Members (k) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. Chief and Deputy Chief of the municipal executive where the central office of the University is located - Members (l) Six persons from amongst Campus Chiefs - Members (m) Three persons from amongst Chairpersons of Subject Committees of the University - Members (n) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077.

Five teachers including at least two women elected by the electoral college consisting of the Chairperson and Secretary of the Nepal Teachers' Association, Campus Unit of the University, on the basis of proportional single transferable vote in accordance with the inclusive principle - Members

(o1) Added by the Some Nepal Acts Amendment Act, 2063. One representative of the Nepal Teachers' Association - Member

(o2) Added by the Some Nepal Acts Amendment Act, 2063. One representative of the Purvanchal University Teachers' Association - Member

(p) Omitted by the Some Nepal Acts Amendment Act, 2072.

(q) Representative of the Academic Council - Member

(r) Representative of the Resource Council - Member

(s) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. Four persons including at least two women on an inclusive basis from amongst education lovers and social workers - Members

(t) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. Six persons including at least two women on an inclusive basis from amongst industrialists, businessmen and farmers - Members

(u) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. Three persons including at least one woman on an inclusive basis from amongst donors - Members

(v) Two persons from amongst Chairpersons of free student unions of campuses - Members

(w) Chiefs of research centres - Members

(x) Registrar - Member-Secretary

(3) Except for ex-officio members, other members of the Assembly shall be nominated by the Chancellor on the recommendation of the Executive Council.

(4) The term of office of nominated members shall be three years. 8. Meeting of the Assembly: (1) The Assembly shall meet at least once a year.

(2) The meeting of the Assembly shall be presided over by the Chairperson of the Assembly. In the absence of the Chairperson, the meeting shall be presided over by the Vice-Chairperson of the Assembly, and in the absence of both the Chairperson and Vice-Chairperson, the meeting of the Assembly shall be presided over by the Vice-Chancellor.

(2a) Added by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. The person presiding over the meeting of the Assembly shall certify the decision of the meeting.

(3) Other procedures relating to the meeting of the Assembly shall be as prescribed, and until so prescribed, the procedures relating to the meeting shall be determined by the Assembly itself. 9.

Functions, Duties and Powers of the Assembly: The functions, duties and powers of the Assembly shall be as follows:- (a) To determine the policy of the University. (b) To provide guidance to the University. (c) To conduct and manage educational programs of the University, or cause them to be conducted and managed. (d) To make necessary provision regarding the establishment and affiliation of campuses, or cause it to be made. (e) To determine degrees to be awarded by the University and award them. (f) To approve the annual budget and program of the University. (g) To pass rules relating to the University. (h) To give directives and guidance to constituent campuses and campuses affiliated by the University. (i) To discuss annual reports of bodies under the University and evaluate programs. (j) To discuss the audit report of the University and give approval. (k) To determine or cause to determine educational and administrative policies of various bodies under the University. (l) To grant permission to operate any new program of the University. (m) To form

various committees, sub-committees or task forces as required by the University. (n) To determine service and conditions of officers, teachers and employees of the University. (o) To perform other functions as prescribed. 10. Formation of the Academic Council: (1) There shall be an Academic Council consisting of the following members to function as the educational and academic body of the University:- (a) Vice-Chancellor - Chairperson (b) Registrar - Member (c) Deans - Members (d) Five persons from amongst Chairpersons of various subject committees of the University - Members (e) Chief, Curriculum Research and Development Centre - Member (f) Chiefs of University Research Division, Planning Division and Coordination Division - Members (g) Two persons from amongst senior professors - Members (h) Four persons from amongst Campus Chiefs - Members (i) Two persons from amongst distinguished scholars - Members (j) Person designated by the Vice-Chancellor from amongst the Deans - Member-Secretary (2) Except for ex-officio members, other members shall be nominated by the Chancellor on the recommendation of the Executive Council. (3) The term of office of nominated members shall be three years. (4) Procedures relating to the meeting of the Academic Council shall be as prescribed, and until so prescribed, the procedures relating to the meeting shall be determined by the Academic Council itself. 11.

Functions, Duties and Powers of the Academic Council: The functions, duties and powers of the Academic Council shall be as follows:- (a) To determine and approve the curriculum of the University. (b) To specify the type of examinations. (c) To determine the qualifications and numbers relating to student admission. (d) To formulate research policy and grant approval to research programs. (e) To evaluate educational programs of students. (f) To determine the standard of teaching and research. (g) To make provision for honorary degrees. (h) To perform other functions as prescribed. 12. Formation of the Executive Council: (1) There shall be an Executive Council consisting of the following members to function as the executive body of the University:- (a) Vice-Chancellor - Chairperson (b) Two persons from amongst Deans - Members (c) One person from amongst teachers - Member (d) Registrar - Member-Secretary (2) The members pursuant to clauses (b) and (c) of sub-section (1) shall be nominated by the Assembly on the recommendation of the Vice-Chancellor. (3) The term of office of nominated members shall be three years. (4) Procedures relating to the meeting of the Executive Council shall be as prescribed, and until so prescribed, the procedures relating to the meeting shall be determined by the Executive Council itself. 13. Functions, Duties and Powers of the Executive Council: The functions, duties and powers of the Executive Council shall be as follows:- (a) To implement or cause to implement the decisions and directives of the Assembly. (b) To conduct or cause to conduct its work within the scope of the national education policy. (c) To prepare annual programs, budget, progress reports, audit reports and other proposals to be submitted to the Assembly. (d) To perform or cause to perform other functions as prescribed. 14.

Formation of the Resource Council: (1) There shall be a Resource Council consisting of the following members for the work of collecting and mobilizing physical means and financial resources of the University:- (a) Person nominated by the Executive Council - Chairperson (b) Three persons from amongst Deans - Members (c) Three persons from amongst Campus Chiefs - Members (d) Eight persons from amongst industrialists, businessmen, farmers and donors - Members Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2073. (e) Four persons from amongst Chiefs of municipal executives under the province where the central office of the University is located, including the Chief of the municipal executive where the central office of the University is located - Members Omitted by the Some Nepal Acts Amendment Act, 2072. (f) (g) Three persons from amongst distinguished persons - Members (h) Registrar - Member-Secretary (2) Except for ex-officio members, other members shall be nominated by the Executive Council. (3) The term of office of the Chairperson and nominated members shall be four years, and they may be re-nominated after the expiry of the term. (4) Procedures relating to the meeting of the Resource Council

shall be as prescribed, and until so prescribed, the procedures relating to the meeting shall be determined by the Resource Council itself. 15. Functions, Duties and Powers of the Resource Council: The functions, duties and powers of the Resource Council shall be as prescribed. 16. Operation of Campuses: (1) The University may establish and operate campuses for various subjects in accordance with national education policy to provide higher education. (2) Provisions relating to campuses established and operated by the University pursuant to sub-section (1) shall be as prescribed. 17. Provisions Relating to Transfer of Campuses: (1) If any campuses within Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 operated as constituent campuses of Tribhuvan University at the time of commencement of this Act wish to remain as constituent campuses of the University, such campuses may be transferred to the University on prescribed basis with the approval of Tribhuvan University. (2) The University may grant affiliation on the basis of the consent of such campus to any campuses within Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 which were affiliated with Tribhuvan University at the time of commencement of this Act. (3) If any campus wishes to obtain affiliation with the University pursuant to sub-section (2), prior information thereof must be given to Tribhuvan University. (4) Other provisions relating to the transfer of campuses and granting of affiliation shall be as prescribed. 18.

Faculties: (1) For higher education to be conducted by the University, there shall be faculties as prescribed in the prescribed subjects. (2) The functions, duties and powers of the faculties under sub-section (1) shall be as prescribed. 19. Formation of Service Commission: (1) There shall be a Service Commission as follows to recommend the appointment and promotion of teachers and employees of the University:- (a) Person appointed by the Chancellor - Chairperson (b) Member of the Public Service Commission - Member (c) One person from amongst professors - Member (2) For submitting recommendations for the appointment of the Chairperson and member pursuant to clauses (a) and (c) of sub-section (1), a committee consisting of two members of the Assembly under the chairpersonship of the Pro-Chancellor shall be formed by the Chancellor, and the Chairperson and member shall be appointed by the Chancellor on the recommendation of that committee. (3) The term of office of the Chairperson and member appointed pursuant to sub-section (2) shall be four years. (4) Procedures relating to the meeting of the Service Commission shall be as prescribed, and until so prescribed, the procedures relating to the meeting shall be determined by the Service Commission itself. 20. Other Functions, Duties and Powers of the Service Commission: Other functions, duties and powers of the Service Commission shall be as prescribed. 21. Remuneration and Facilities of Chairperson and Member of Service Commission: The remuneration, facilities and terms of service of the Chairperson and member of the Service Commission shall be as prescribed. 22. Chancellor: (1) The Prime Minister shall be the Chancellor of the University. (2) The Chancellor shall be the head of the University and the Chairperson of the Assembly. (3) The Chancellor may inspect any subject or matter related to the University and give necessary directives. 23. Pro-Chancellor: (1) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2073. The Minister or Minister of State for Education, Science and Technology shall be the Pro-Chancellor of the University. (2) The Pro-Chancellor may inspect the University as required and give directives. 24. Vice-Chancellor: (1) The Vice-Chancellor shall be the principal officer working full-time at the University. (2) For submitting recommendations for appointment to the post of Vice-Chancellor, a committee consisting of two members of the Assembly under the chairpersonship of the Pro-Chancellor shall be formed by the Chancellor, and the Vice-Chancellor shall be appointed by the Chancellor on the recommendation of that committee. (3) The term of office of the Vice-Chancellor shall be four years. (4) The remuneration, facilities and terms of service of the Vice-Chancellor shall be as prescribed. 25.

Functions, Duties and Powers of the Vice-Chancellor: (1) The functions, duties and powers of the

Vice-Chancellor shall be as follows:- (a) The Vice-Chancellor shall have general control over all the work and activities of the University, and he/she may give directives and supervise the work and activities of the University. (b) The Vice-Chancellor must implement or cause to implement the decisions and directives of the Assembly. (c) The Vice-Chancellor shall perform works other than those mentioned to be performed by any body or officer in this Act or the rules made under this Act. The Vice-Chancellor must immediately inform the Chancellor of the work done accordingly and get it ratified by the subsequent meeting of the Assembly. (d) Matters to be presented to the Assembly shall be presented through the Vice-Chancellor. (e) Other functions, duties and powers of the Vice-Chancellor shall be as prescribed. 26. Registrar: (1) The Registrar of the University shall be appointed by the Chancellor on the recommendation of the Vice-Chancellor. (2) The Registrar shall be an officer working full-time at the University. (3) The term of office of the Registrar shall be four years. (4) The functions, duties and powers, as well as remuneration, facilities and terms of service of the Registrar shall be as prescribed. Added by the Act Made to Amend Some Nepal Acts Relating to Education, 2073. (5) The Registrar shall keep records of the decisions or orders of the Assembly. A copy of such decision or order shall be sent to the Chancellor. 27. Dean: Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2073. (1) The Dean shall be appointed by the Executive Council. (2) The term of office of the Dean shall be four years. (3) The functions, duties and powers, as well as remuneration, facilities and terms of service of the Dean shall be as prescribed. 28. Other Officers: (1) There shall be other officers in the University as prescribed. (2) The appointment, functions, duties and powers, as well as remuneration, facilities and terms of service of other officers shall be as prescribed. Added by the Some Nepal Acts Amendment Act, 2064. 28a. Period within which Appointment Must Be Made: Notwithstanding anything contained elsewhere in this Act, if the post of any officer of the University falls vacant, the concerned authority shall make an appointment to fill such post within three months of the vacancy. Added by the Some Nepal Acts Amendment Act, 2064. 28b.

May Assign Responsibility: Notwithstanding anything contained elsewhere in this Act, if any post of the University falls vacant, until the vacancy is filled, for the purpose of conducting daily work, the Chancellor, in consultation with the Pro-Chancellor, may assign the responsibility of the Vice-Chancellor, and the Vice-Chancellor may assign the responsibility of other officers to any senior-most professor of the University for a maximum period of three months. Added by the Some Nepal Acts Amendment Act, 2064. 28c. May Be Removed from Office: (1) If one-third of the members present in the Assembly submit a written application to the Chancellor stating that the Vice-Chancellor, Dean, Registrar or Chairperson of the Service Commission has failed to fulfill the responsibility appropriate to his/her office, has not worked honestly, or has not conducted himself/herself befitting the office, the Chancellor shall form a three-member investigation committee consisting of a member of the University Grants Commission and the Secretary of the Ministry of Education, Science and Technology under the chairpersonship of any member of the Assembly. (2) The investigation committee formed pursuant to sub-section (1) shall make necessary investigation in that regard and submit its report to the Chancellor within thirty days. (3) Upon receipt of the report pursuant to sub-section (2), the Chancellor shall submit such report to the Assembly. (4) If, upon discussion of the report submitted pursuant to sub-section (2), at least fifty-one percent of the total members of the Assembly decide to remove the Vice-Chancellor, Dean, Registrar or Chairperson of the Service Commission from office, the Chancellor shall remove the Vice-Chancellor, Dean, Registrar or Chairperson of the Service Commission from office. Provided that, before such removal, he/she shall not be deprived of an opportunity to present a defense. (5) The procedure to be adopted while investigating accusations against or removing from office other officers of the University, except the Vice-Chancellor, Dean, Registrar and Chairperson of the Service Commission, pursuant to sub-section (1) shall be as prescribed. (6) If investigation has commenced against

any officer pursuant to this Section, a final decision must be made within six months. Until such final decision is made, he/she shall not be entitled to work in the post he/she holds. (7) For the purpose of performing the daily work to be done by the officer pursuant to sub-section (6), the Chancellor may assign responsibility to the senior-most officer of the University. 29.

Formation of Faculty Board: (1) In each faculty, there shall be a Faculty Board as prescribed for the conduct of educational and academic programs. (2) Under the Faculty Board pursuant to sub-section (1), there shall be subject committees as prescribed. (3) The functions, duties and powers of the Faculty Board and the subject committees thereunder, as well as procedures relating to meetings, shall be as prescribed. 30.

Establishment and Operation of Research Centres: (1) The University may establish various research centres for performing educational, academic and research related work. (2) The functions, duties and powers and the method of operation of research centres established pursuant to sub-section (1) shall be as prescribed. 31.

University Fund: (1) The University shall have its own separate fund, and the following amounts shall be in that fund:- (a) Grants or assistance amounts received from the Government of Nepal, (b) Amounts provided by any person or institution by way of subscription, donation, charity and financial assistance, (c) Assistance and grant amounts received from persons or institutions associated with industry, trade or business, Amended by the Some Nepal Acts Amendment Act, 2072. (d) Assistance and grant amounts received from Rural Municipalities or Municipalities, (e) Assistance and loan amounts received from international organizations, institutions, foreign governments or agencies or financial institutions, (f) Amounts received from fees or any other source. (2) While receiving any amount pursuant to clause (e) of sub-section (1), the University shall obtain the approval of the Government of Nepal. (3) The amount of the University fund shall be deposited by opening an account in a prescribed bank, and the operation of the University fund and account shall be as prescribed. (4) All expenses of the University shall be borne from the fund pursuant to sub-section (1). 32. Accounts and Audit: (1) The accounts of income and expenditure of the University shall be kept in accordance with the prevailing law. Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2073. (2) The audit of the University shall be conducted by the Auditor General. 33. Degree and Certificate Amended by the Some Nepal Acts Amendment Act, 2082. and Recognition: (1) The University may give certificates as prescribed to students, trainees or researchers who have achieved prescribed higher education, and may award honorary degrees to persons who conduct research work and do commendable work in the academic field.

Amended by the Some Nepal Acts Amendment Act, 2082. (2) The University may recognize academic degrees of other universities or educational institutions. 34. Qualifications Required for Admission to the University: The qualifications required for admission to the University shall be as prescribed. Added by the Act Made to Amend Some Nepal Acts Relating to Education, 2073. 34a. Free Higher Education and Scholarships: (1) Higher education shall be free for Dalit, marginalized, disabled and economically disadvantaged students who meet the criteria prescribed by the University and are admitted to the University or constituent and community educational institutions under its purview.

(2) For the purpose of sub-section (1), the basis, criteria, classification and other provisions shall be as prescribed by the Government of Nepal by notification published in the Nepal Gazette.

(3) Amended by the Some Nepal Acts Amendment Act, 2082. A student may avail the facility pursuant to sub-section (1) only once at each level.

(4) Notwithstanding anything contained in the prevailing law, seats as prescribed shall be reserved for Dalit students for admission to technical and vocational higher education.

(5) The University shall make provision for higher education for the sons and daughters of martyrs, disappeared persons and persons with disabilities in accordance with the provisions in the prevailing law.

(6) A student who has studied from class six to class ten in a community school shall receive a scholarship in higher education in accordance with the prevailing law. 35. To Act in Accordance with National Education Policy: It shall be the duty of the University to conduct its work in accordance with the national education policy of the Government of Nepal. 36. Delegation of Powers: (1) The Assembly may delegate all or some of the powers conferred upon it by this Act or the rules made under this Act to the Academic Council, Executive Council, Resource Council, Campus, Faculty, Service Commission, any officer, Faculty Board, or any committee, sub-committee or task force formed under this Act.

(2) The Academic Council, Executive Council, Resource Council, Campus, Faculty, Service Commission, any officer or Faculty Board may entrust all or some of the powers conferred upon them by this Act or the rules made under this Act to the prescribed body or officer. 37. Contact with the Government of Nepal: While contacting the Government of Nepal, the University shall do so through the Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. Ministry of Education, Science and Technology. 38. Consequence of Dissolution: If the University is dissolved, its movable and immovable property shall vest in the Government of Nepal. Added by the Some Nepal Acts Amendment Act, 2064. 38a.